

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING RECOUNT LAWS; CLARIFYING PROVIDED
5 TIMEFRAMES REFER TO BUSINESS DAYS; SPECIFYING WHICH ENTITY IS RESPONSIBLE FOR
6 SPECIAL DISTRICT AND MUNICIPAL ELECTION RECOUNT EXPENSES; REVISING TIMEFRAMES FOR
7 CANDIDATE FILING OF RECOUNT REQUESTS, MEETING OF RECOUNT BOARD, CANDIDATE
8 SUBMISSION OF RECOUNT BOND, AND FOR APPLICATION FOR A COURT ORDERED RECOUNT;
9 AMENDING SECTIONS 13-16-201, 13-16-204, 13-16-205, 13-16-211, AND 13-16-301, MCA; AND
10 PROVIDING AN IMMEDIATE EFFECTIVE DATE."

11

12 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

13

14 **Section 1.** Section 13-16-201, MCA, is amended to read:

15 **"13-16-201. Conditions under which recount to be conducted.** (1) A recount must be conducted if:

16 (a) a candidate for a precinct office or for a county, municipal, or district office voted for in only one
17 county, other than a legislator or a judge of the district court, is defeated by a margin not exceeding 1/4 of 1% of
18 the total votes cast or by a margin not exceeding 10 votes, whichever is greater, and the defeated candidate,
19 within 5 business days after the official canvass, files with the election administrator a verified petition stating
20 that the candidate believes that a recount will change the result and that a recount of the votes for the office or
21 nomination should be conducted;

22 (b) a candidate for a congressional office, a state or district office voted on in more than one
23 county, the legislature, or judge of the district court is defeated by a margin not exceeding 1/4 of 1% of the total
24 votes cast for all candidates for the same position and the defeated candidate, within 5 business days after the
25 official canvass, files a petition with the secretary of state as set forth in subsection (1)(a). The secretary of
26 state shall immediately notify each election administrator whose county includes any precincts that voted for the
27 office, and a recount must be conducted in those precincts.

28 (c) a question submitted to the vote of the people of a county, municipality, or district within a

1 county is decided by a margin not exceeding 1/4 of 1% of the total votes cast for and against the question and a
2 petition as set forth in subsection (1)(a) is filed with the election administrator. This petition must be signed by
3 not less than 10 electors of the jurisdiction and must be filed within 5 business days after the official canvass.

4 (d) a question submitted to the vote of the people of the state is decided by a margin not
5 exceeding 1/4 of 1% of the total votes cast for and against the question and a petition as set forth in subsection
6 (1)(a) is filed with the secretary of state. This petition must be signed by not less than 100 electors of the state,
7 representing at least five counties of the state, and must be filed within 5 business days after the official
8 canvass.

9 (e) a question submitted to the vote of the people of a multicounty district is decided by a margin
10 not exceeding 1/4 of 1% of the total votes cast for and against the question and a petition as set forth in
11 subsection (1)(a) is filed with the secretary of state. This petition must be signed by not less than 25 electors of
12 the district, representing at least two counties, and must be filed within 5 business days after the official
13 canvass.

14 (f) a canvassing board petitions for a recount as provided in 13-15-403.

15 (2) If the election is a school election, the petition is filed with the school election filing officer.

16 (3) When a recount is required under subsection (1)(b), (1)(d), or (1)(e), the secretary of state shall
17 immediately notify each election administrator of the filing of the petition, and a recount must be conducted in all
18 precincts in each affected county."

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20 **Section 2.** Section 13-16-204, MCA, is amended to read:

21 **"13-16-204. Meeting of recount board when recount requested.** (1) (a) Immediately upon receiving
22 a petition for a recount or a notice from the secretary of state that a petition has been filed as provided in 13-16-
23 201, the election administrator shall notify the members of the county recount board.

24 (b) Upon receipt of a petition for a school election recount as provided in 13-16-201(2), the school
25 election filing officer shall notify the members of the school recount board.

26 (2) The board shall convene at the usual meeting place of the governing body without undue delay
27 but not later than 5 business days after receiving notice from the election administrator or school election filing
28 officer."

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2 **Section 3.** Section 13-16-205, MCA, is amended to read:

3 **"13-16-205. Expenses of recount.** (1) Except as provided in ~~subsection~~ subsections (2) through (4),
4 the expense of the recount provided for in 13-16-201 is a county charge. Recount expenses of the secretary of
5 state and board of state canvassers are a state charge.

6 (2) If the recount is for a school election, the expense of the recount is a school district charge as
7 provided in 20-20-107(1).

8 (3) If the recount is for a special district election, the expense of the recount is a special district
9 charge as provided in 13-1-302(2).

10 (4) If the recount is for a municipal election, the expense of the recount is a municipal charge as
11 provided in 13-1-107(3)."

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13 **Section 4.** Section 13-16-211, MCA, is amended to read:

14 **"13-16-211. Recounts allowed if bond posted to cover all costs.** (1) If a candidate for a public
15 office is defeated by a margin exceeding 1/4 of 1% but not exceeding 1/2 of 1% of the total votes cast for all
16 candidates for the same position, the candidate may, within 5 business days after the official canvass, file with
17 the officer with whom the candidate's declaration or petition for nomination was filed a petition stating that the
18 candidate believes a recount will change the result of the election.

19 (2) The unsuccessful candidate shall post a bond with the election administrator of the county in
20 which the candidate resides. The bond must be in an amount set by the election administrator sufficient to
21 cover all costs of the recount incurred by each county in which a recount is sought, which may include the
22 following:

23 (a) compensation for the county recount board, the election administrator, and any additional
24 personnel needed to participate in the recount; and

25 (b) necessary supplies and travel related to the recount.

26 (3) Upon the filing of a petition and posting of a bond under this section, the county recount board,
27 as designated in 13-16-101, in each county affected shall meet and recount the ballots specified in the petition."

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1 **Section 5.** Section 13-16-301, MCA, is amended to read:

2 **"13-16-301. Application and court order for recount.** (1) (a) Within 5 business days after the
3 canvass of election returns, an unsuccessful candidate for any public office at an election may apply to the
4 district court of the county where the election was held for an order directing the appropriate county or school
5 recount board to make a recount of the votes cast in any or all of the precincts or the school district polling
6 places. If the election was held in more than one county, the application must be made to the district court of
7 the county where the candidate resides.

8 (b) Within 5 business days after the canvass of election returns, an elector who was eligible to vote
9 on the issue and who believes that there are grounds for a recount of the votes cast for and against a ballot
10 issue may apply to the district court of the county where the elector resides for an order directing the
11 appropriate county or school recount board to make a recount of the votes cast in any or all of the precincts or
12 the school district polling places.

13 (2) The application must specify the grounds for a recount, and it must be verified by the applicant
14 that the matters contained in it are true to the best of the applicant's knowledge, information, and belief.

15 (3) Within 5 business days after filing of the application, the judge shall hear the application and
16 determine its sufficiency.

17 (4) If the judge finds there is probable cause to believe that the votes cast for the applicant or the
18 ballot issue were not correctly counted, the judge shall order the appropriate county or school recount board to
19 assemble within 5 business days after the order is issued at a time and place fixed by the order. The board
20 shall meet and recount the ballots as specified in the order."

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22 NEW SECTION. **Section 6. Effective date.** [This act] is effective on passage and approval.

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